

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 17, 2026, AT 8:30 A.M.

5. M-CV-0091100 AMERICAN EXPRESS NATIONAL V. RODE, TERESA

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$13,875.08 in unpaid principal plus \$586.01 in court costs for a total judgment of \$14,461.09.

6. M-CV-0096239 ROCKLIN SIERRA APT II V. TATE, TREYVON

Status Conference re: Appointment of Counsel

Appearances of the parties are required at the hearing.

7. M-CV-0096921 MIDLAND CREDIT MANAGEMENT v. LAGIER, LES

Defendant's Motion to Compel Binding Arbitration and Stay Proceedings

Defendant moves to compel plaintiff to arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then "bears the burden of proving by a preponderance of the evidence any fact necessary to its defense" including evidence challenging the

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acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets his initial burden that an agreement to arbitrate exists between plaintiff and defendant that involves interstate commerce. As such, the burden shifts to plaintiff.

Plaintiff does not oppose the motion to compel arbitration and thus does not meet its burden to establish any defenses.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on **Thursday, February 18, 2027, at 9:00 a.m. in Department 3.**

8. M-CV-0098090 HOLO I MUA v. DANILEO ENTERPRISES

Plaintiff’s Motion for Summary Judgment Against Defendant Silvio Praseli

Appearances of the parties are required at the hearing.

9. M-CV-0098241 DEMAYO, DANIEL v. MILTON, JASON

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is requested, it shall be heard on September 23, 2026, at 8:30 a.m. in Department 4.

Defendant’s Motion to Set Aside Default and Default Judgment

On August 19, 2026, the court held a trial on plaintiff’s unlawful detainer complaint. Defendant did not appear. The court thereafter entered judgment in favor of plaintiff and against defendant.